

LW6108E: INTERNATIONAL FINANCE: LAW AND REGULATION

Effective Term

Semester A 2026/27

Part I Course Overview

Course Title

International Finance: Law and Regulation

Subject Code

LW - Law

Course Number

6108E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

NIL

Precursors

NIL

Equivalent Courses

NIL

Exclusive Courses

NIL

Part II Course Details

Abstract

International Finance: Law and Regulation examines the legal and regulatory issues affecting major transactions in the global financial markets. These include: international and domestic loans, bonds, trading in debt instruments, securities offerings, securitisation, derivatives and structured products. The course examines how financial transactions are structured and documented, the international and municipal regulatory norms affecting them, and the legal and regulatory issues which arise from the creative transaction planning and their related policy concerns.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Describe and explain the law affecting international financial transactions and the structure of financial transactions.	20	x		
2	Apply law to solve legal problems and appreciate the impact of regulatory norms by: - analysing cases - interpreting statutes - conducting independent research on the law and relevant legal issues - marshalling arguments clearly, logically, coherently and effectively, both orally and in writing.	30	x	x	
3	Research, analyse and critically evaluate: - relevant legal principles and regulatory norms in resolving disputes arising from financial transactions - the implications of the above principles and regulatory norms in achieving the objectives of private actors, funds, financial intermediaries.	50	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs	Brief Description	CILO No.	Hours/week (if applicable)
1	Reading of cases, statutes and other material, and research	- Students will acquire knowledge of the substantive rules (both hard and soft norms) relating to international financial transactions. This would be through both set readings and other materials acquired through the student's own research.	1
2	Reading of cases, statutes and other material, and research	- Students will learn and evaluate conceptual and policy issues concerning international financial transactions through multimedia or other presentations. This would be through both set readings and other materials acquired through the student's own research.	3
3	Lectures	- Students will receive guidance on their reading and research through multimedia or other presentations.	1
4	Lectures	- Students will be introduced to legal issues and policy concerns (both domestic and international) relating to international financial flows. They will also learn how to do policy advocacy and participate meaningfully in the formulation of regulatory norms.	3

5	Lectures	- Students will analyse cases, interpret statutes, and may need to research policy issues concerning international financial transactions. - Students should develop issue recognition, problem solving and application skills. - Students will learn the importance of the narrative in making arguments, whether in advocating a position in a negotiation or the resolution of a dispute, or in submissions in support of or concerns relating to policy norms.	3	
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Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Written Assignment	1, 2, 3	30	-	No

Continuous Assessment (%)

30

Examination (%)

70

Examination Duration (Hours)

3

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Exam:

- Students' ability to apply the legal principles to given situations, to resolve problems, and to communicate arguments in writing will be tested.
- Students' ability to analyse and critically evaluate, and to communicate arguments in writing will be tested.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain a minimum mark of 40% in examination and an overall mark of 40% in order to pass the course.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain a minimum mark of 50% in examination and an overall mark of 50% in order to pass the course.

Assessment Rubrics (AR)**Assessment Task**

Written Assignment (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Depth of research
Synthesis and argument

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Examination (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Perspicacity in identifying the nature of the legal issue(s) implicated.
Sophistication in analysis.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Written Assignment (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Depth of research
Synthesis and argument

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Examination (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Perspicacity in identifying the nature of the legal issue(s) implicated.
Sophistication in analysis.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

- international and domestic loans
- bonds
- trading in debt instruments
- public fundraising and regulation
- securitisation
- derivatives and structured products

Detailed Syllabus (tentative – subject to change)

- a. The trajectory of international finance and legal technology (1 week)
- b. Loan Origination and Documentation (1 week)
- c. Syndicated Loans (2 weeks)
- d. Bonds (1 week)
- e. Debt Trading and Blockchain Technology (1 week)

- f. Payment Systems and Fintech (1 week)
- g. Public Fundraising and Regulation (1 week)
- h. Securitisation (2 weeks)
- i. Derivatives and Structured Products (2 weeks)

Reading List

Compulsory Readings

Title	
1	To be provided in the reading list for each topic

Additional Readings

Title	
1	Philip Wood, Law and Practice of International Finance (Sweet & Maxwell. 2019)
2	McKnight, Paterson, and Zakrzewski on the Law of International Finance (OUP. 2017)
3	Douglas Arner, Financial Markets in Hong Kong: Law and Practice (OUP. 2016)